Fort Bend County District Court

Cause No. 2026-CV-0035

Shannon Lopez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-28-26
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those allegations expressly admitted below, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Defendant further denies that Plaintiff is entitled to any of the relief requested in the Petition.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, the collision was a low-speed event, and the injuries Plaintiff claims were not proximately caused by the occurrence made the basis of this suit. Plaintiff's alleged damages, to the extent they exist, were caused by preexisting conditions or by unrelated events.

Second, Plaintiff failed to exercise ordinary care to mitigate damages, incluidng by failing to follow reasonable medical advice and by delaying treatment. Any recovery must be reduced accordingly.

Third, Plaintiff's own negligence, if any, was a proximate cause of the occurrence or of the damages claimed. Unedr Cahpter 33 of the Texas Civil Practice and Remedies Code, Defendant requests that the trier of fact assign percentages of responsibility, and that any recovery be reduced or barred in accordance with that chapter.